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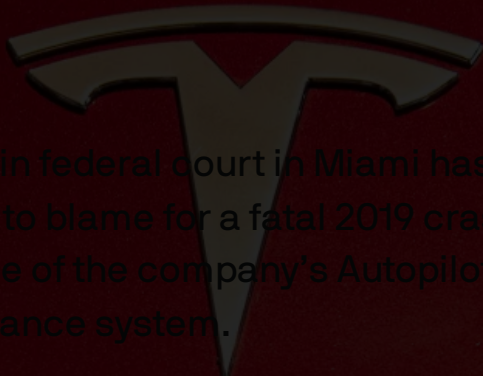
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Tesla partly liable in
Florida Autopilot trial,
jury awards \$200M in
damages



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restrict drivers from using it elsewhere, alongside Elon Musk telling the world Autopilot drove better than humans.”

“Tesla’s lies turned our roads into test tracks for their fundamentally flawed technology, putting everyday Americans like Naibel Benavides and Dillon Angulo in harm’s way,” said Schreiber. “Today’s verdict represents justice for Naibel’s tragic death and Dillon’s lifelong injuries, holding Tesla and Musk accountable for propping up the company’s trillion-dollar valuation with self-driving hype at the expense of human lives.”

Tesla, in a statement provided to TechCrunch, said it plans to appeal the verdict, arguing that the errors occurred because of driver inattention.

“Today’s verdict is a landmark moment for the automotive industry, showing that the public’s safety is the entire industry’s responsibility. It’s a life-saving message that’s long overdue. It’s clear, no matter how much we want to prevent it, we can’t let Tesla’s Autopilot lawyers keep us from the truth. One — and only one —

Tesla and Musk spent years making claims about Autopilot’s capabilities that have led to overconfidence in the driver assistance system, a reality that government officials — and Musk himself — have spoken about for years.

The National Transportation Safety Board (NTSB) came to this determination in 2020 after investigating a 2018 crash where the driver died after hitting a concrete barrier. That driver, Walter Huang, was [playing a mobile game while using Autopilot](#). The NTSB made a number of recommendations following that investigation,

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which [Tesla largely ignored](#), the [safety board later claimed](#).

On a 2018 conference call, Musk said “complacency” with driver assistance systems like Autopilot is a problem.

“They just get too used to it. That tends to be more of an issue. It’s not a lack of understanding of what Autopilot can do. It’s [drivers] thinking they know more about Autopilot than they do,” Musk [said at the time](#).

The trial took place at a time when Tesla is currently in the [middle of rolling out the first versions of its](#)

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Sean O'Kane

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Sean O’Kane is a reporter who has spent a decade covering the rapidly-evolving business and technology o...

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Tesla Autopilot investigation closed after feds find 13 fatal crashes

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The National Highway Traffic Safety Administration closed a long-standing investigation into Tesla's Autopilot driver assistance system after reviewing hundreds of crashes involving its misuse, including 13 that were fatal and "many more involving serious injuries."

At the same time, NHTSA is opening a new investigation to evaluate whether the Autopilot recall fix that [Tesla implemented in December](#) is effective enough.

NHTSA's Office of Defects Investigation said in [documents](#) released Friday that it completed "an

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extensive body of work which turned up evidence that “Tesla’s weak driver engagement system was not appropriate for Autopilot’s permissive operating capabilities.”

“This mismatch resulted in a critical safety gap between drivers’ expectations of [Autopilot’s] operating capabilities and the system’s true capabilities,” the agency wrote. “This gap led to foreseeable misuse and avoidable crashes.”

The closing of the initial probe, which began in 2021, marks an end of one of the most visible efforts by the government to scrutinize Tesla’s Autopilot software. Tesla is still feeling the pressure of multiple

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crashes up until August 30, 2023. In roughly half
(489) of those, the agency said either there “was
insufficient data to make an assessment,” the other
vehicle was at fault, Autopilot was found to not be in
use or the crash was otherwise unrelated to the
probe.

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departures in low traction conditions such as wet roadways. And it said 111 of the crashes involved “roadway departures where Autosteer was inadvertently disengaged by the driver’s inputs.”

These crashes “are often severe because neither the system nor the driver reacts appropriately, resulting in high-speed differential and high energy crash outcomes,” the agency wrote.

Tesla tells drivers they need to pay attention to the road and keep their hands on the wheel while using Autopilot, which it measures via a torque sensor and, in its newer cars, the in-cabin camera. But

NHTSA, and other safety groups, have said that these warnings and checks do not go far enough. In December, NHTSA said these measures were “insufficient to prevent misuse.”

Tesla agreed to issue a recall via a software update that would theoretically increase driver monitoring. But that update did not really appear to change Autopilot much — a sentiment NHTSA seems to agree with.

Parts of that recall fix require the “owner to opt in,” and Tesla allows a driver to “readily reverse” some of the safeguards, according to NHTSA.

NHTSA investigated with Tesla. It performed about 100

But the support

“Gaps in reporting regarding operational

crashes. Tesla is not aware of every crash involving Autopilot even for severe crashes because of gaps in telematic reporting,” NHTSA wrote. According to the agency, Tesla “largely receives data from crashes only with pyrotechnic deployment,” meaning when air bags, seat belt pre-tensioners or the pedestrian impact mitigation feature of the car’s hood are triggered.

NHTSA claims that limiting to this level means Tesla is only collecting data on around 18% of crashes that are reported to the police. As a result, NHTSA wrote that the probe uncovered crashes for which

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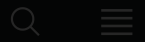
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Autopilot was engaged that Tesla was not notified of
via telematics.

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Tesla wins Autopilot crash case in California

Tesla scored a victory Friday after a California jury determined the automaker was not to blame for a 2019 crash that involved its advanced driver assistance system, known as Autopilot.

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The jury awarded no damages to Los Angeles resident Justin Hsu, who sued Tesla in 2020 alleging the crash was a result of a software defect.

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system while driving on city streets, which Hsu did.

The court ruling provides a win for Tesla as it faces increased scrutiny from federal and state regulators over Autopilot as well as the upgraded versions of the system called Enhanced Autopilot and Full Self-Driving software.

Tesla vehicles come standard with a driver-assistance system branded as Autopilot. For a \$6,000 upgrade, owners can purchase Enhanced Autopilot, which includes several other features.

For an [additional \\$15,000](#), owners can buy “full self-driving,” or FSD — a feature that CEO [Elon Musk](#) has promised for years will one day deliver full autonomous driving capabilities. Tesla vehicles [are not self-driving](#).

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Instead, FSD includes a number of automated driving features that still require the driver to be ready to take control at all times. It includes the parking feature Summon, as well as Navigate on

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Autopilot, an active guidance system that navigates a car from a highway on-ramp to off-ramp, including interchanges and making lane changes. The system is also supposed to handle steering on city streets and recognize and react to traffic lights and stop signs.

In February, Tesla [paused the rollout](#) of its Full Self-Driving beta software in the United States and Canada following a recall of the system that federal safety [regulators warned](#) could allow vehicles to act unsafe around intersections and cause crashes.

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Tesla to provide more info on its driver alert system amid Autopilot probe

Rebecca Bellan — 5:27 PM PDT · July 6, 2023

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Tesla's cabin camera and [driver monitoring system](#), which the automaker says can determine if a driver isn't paying attention and send them noise alerts as a reminder to keep their eyes on the road while Autopilot is engaged. NHTSA also asked for information about how Tesla generates its quarterly safety reports.

The agency has given Tesla a deadline of July 19 to answer its questions with current data. Tesla could not be reached for comment.

Since 2016, NHTSA has opened 41 Tesla [special crash investigations](#) where Autopilot was

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suspected of being used, according to data collected until December 2022. Within those crashes, 19 deaths were reported.

Autopilot has certain automated driving features, like the ability to steer, accelerate and brake automatically within a lane on a highway. Enhanced Autopilot can assist in changing lanes, too. The latest version of Tesla's "Full Self-Driving" beta software (FSD) combines those capabilities with city driving features like responding to traffic signals and stop signs and making turns. However, neither Autopilot nor FSD is fully self-driving, and Tesla warns drivers to maintain alertness in case they need to take over the vehicle.

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systems. It also asks for data on the number of vehicles with "Tesla Vision" — vehicles equipped with cameras and no other sensors — and if those vehicles also have the cabin camera system.

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Musk oversaw misleading 2016 video saying Tesla drove itself



Tesla CEO Elon Musk oversaw a 2016 video that overstated the capabilities of the automaker's driver assistance system, Autopilot, according to internal emails viewed by Bloomberg. The emails show

that Musk even dictated the opening tagline of the video that claimed the car drove itself. Earlier this week, a deposition from a senior engineer revealed ... [Continue reading](#)



Rebecca Bellan
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Rebecca Bellan is a senior reporter at TechCrunch, where she covers the automotive industry. View Bio

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